

# TERMS AND CONDITIONS

Tawi Lodge supports the community and conservation area around us, and therefore have a responsibility to uphold.

Bookings are accepted on the condition that guests have their own comprehensive medical and travel insurance cover.

## TO PLACE A PROVISIONAL BOOKING

- Send an email to [sales@tawilodge.com](mailto:sales@tawilodge.com), your booking is held provisionally for 14 days. The expiry date of the booking will be noted on the email you are sent. You are required to confirm the booking prior to the expiry date otherwise the booking will automatically expire. If you require more time to confirm your booking, the expiry date maybe extended once by request on email.
- If another booking is waitlisted against the original enquiry being held provisionally, we reserve the right to request that the original provisionally held reservation is either confirmed or released within 48 hours.

Reservations are only confirmed with the payment of a non-refundable deposit of 20% of the total reservation costs. On receipt of your confirmed reservation notification and deposit, we will confirm your request as per your enquiry in writing to you. Upon issue of our confirmation invoice, your booking is confirmed, accepted by us and subject to the governing terms and conditions. The balance of your reservation is payable in full no later than 60 days prior to arrival date. Deposits are held in our bank account.

## PAYMENT

- Payment terms: the balance is payable in full 60 days prior to date of arrival. If the final payment is not received at this point, then Tawi Lodge is entitled to release the room(s). Bookings are accepted on the condition that guests have their own comprehensive medical and travel insurance cover.

## CANCELLATION

- More than 61 days prior to arrival, your deposit will be retained
- 60 to 31 days prior to arrival - 50% of the reservation will be withheld
- Less than 30 days prior to arrival and No Shows - 100% of the full value of the reservation is forfeited.
- Should a guest fail to join a safari, join after a set departure or leave it prior to its completion, no refund can be made, and full cancellation fees apply.
- For any change in the itinerary by guests whilst on safari, there will be no refund for any services not utilised, and all-new arrangements will be for the guest's account.

## DISCLAIMER

- This agreement is made subject to and shall be governed and construed according to the laws of Kenya. Nothing in this agreement shall limit or exclude Tawi Lodges's liability for: (a) death or personal injury caused by its direct and substantial negligence, or the direct and substantial negligence of its employees, agents or subcontractors (as applicable); (b) fraud or fraudulent misrepresentation or willful default; and (c) any matter in respect of which it would be unlawful for Tawi Lodge to exclude or restrict liability. Subject to such provision and to the extent permissible under applicable law, neither Tawi Lodge, nor any person acting for, through or on its behalf shall be liable for any loss or damage whatsoever and, without restricting the generality of the foregoing, shall not be responsible for direct, indirect or consequential loss or damage arising from any errors or omission, contained in any brochure or other literature, late or non-confirmation or acceptance of bookings occasioned by the agent or guest; or loss or damage to any property, or loss or damage caused by delays, sickness, personal injury or death (irrespective of the cause of such injury, death, loss or damage) except if such a liability or claim is as a direct and substantial result of the gross negligence or willful misconduct of Tawi Lodge. Tawi Lodge may, at its discretion and without liability or cost to itself, at any time cancel or terminate the guest's booking and in particular without limiting the generality of the foregoing, it shall be entitled to do so in the event of the illness or the illegal or incompatible behaviour of the guest, or under any other cause permitted by these terms and who shall in such circumstances not be entitled to any refund.

In order to reconfirm the arrangements herein, the Company is kindly requesting you to sign, date and initial and return a copy to Tawi Lodge. Please note these special rates will only be guaranteed and validated upon receipt of the returned signed copy.

Signed on behalf of,  
Tawi Lodge

Name -

Designation - Sales

Date - 2024 / 2025

Signed on behalf of,  
Company Name:

Name -

Designation -

Date - 2024 / 2025

